

power to do so through prospective relief against state magistrates and judges.¹⁸

- B. Petitioner and her *amici* offer no countervailing justification for an extension of judicial immunity, but rather a proper analysis of the factors they discuss further militates against any such extension.

Petitioner and her *amici* offer three basic arguments to support the extension of judicial immunity. These arguments are: first, that judicial immunity is historical; second, that the failure not to extend judicial immunity will result in harmful consequences to the judiciary; and third, that judicial officers are like legislators. None of these arguments provides any solid ground upon which to base, much less justify, the requested extension of immunity.

1. *The historical derivation and treatment of judicial immunity support its limitation to damages awards.*

Though it is not to be disputed that judicial immunity preceded our democratic form of government, with its common law roots in England's Middle Ages, the actual

¹⁸ Indeed, many scholars would go much farther than Respondents here urge. Most modern scholars of the doctrine of judicial immunity believe that where, as here, a constitutional violation is not subject to timely correction by the usual channels of appellate review, judicial immunity from damages awards should be qualified or abolished. See, e.g., Block, *Stump v. Sparkman and the History of Judicial Immunity*, 1980 DUKE L.J. 879; Kates, *Immunity of State Judges Under the Federal Civil Rights Acts: Pierson v. Ray Reconsidered*, 65 NW.U.L. REV. 615 (1970); Laycock, *Civil Rights and Civil Liberties*, 54 CHI.-KENT L.REV. 390 (1977); Nagel, *Judicial Immunity and Sovereignty*, 6 HASTINGS CONST. L.Q. 237 (1978); Nahmod, *Persons Who Are Not "Persons": Absolute Immunity Under Section 1983*, 28 DEPAUL L.REV. 1 (1978); Rosenberg, *Stump v. Sparkman: The Doctrine of Judicial Impunity*, 64 VA.L.REV. 833 (1978).